

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOSEPH LOWMAN,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JEREMIAH
RAMOS (SHIELD NO. 31619 ASSIGNED TO TD DT 12)
and POLICE OFFICERS JOHN DOE Nos. 1-4 (Actual Names
unknown, who were present and involved in the Plaintiff's
Arrest on January 23, 2023)

Defendants.

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your
answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on Plaintiff's Attorney
within 20 days after the service of summons, exclusive of the day of service (or within 30 days after the service is
complete if this summons is not personally delivered to you within the State of New York); and in case of your
failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: March 25, 2024

Yours, etc.,
LAW OFFICE OF
MATTHEW A. KAUFMAN, PLLC
s/ Matthew A. Kaufman

By: Matthew A. Kaufman
Attorneys for Plaintiff
225 Broadway - Suite 1606
New York, N.Y. 10007
Tel. No. (212) 619-2200
MAK File No. 15,647.301

Defendants' Addresses:

TO: CITY OF NEW YORK
c/o NY Corporation Counsel
100 Church Street
New York, N.Y. 10007

P.O. JEREMIAH RAMOS
Shield No. 31691, Tax No. 953298 c/o
c/o NYPD, Transit District 12
460 Morris Park Avenue
Bronx, N.Y. 10460

NEW YORK POLICE DEPARTMENT
c/o NY Corporation Counsel
100 Church Street
New York, N.Y. 10007

P.O. JOHN DOES Nos. 1-4
NYPD

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOSEPH LOWMAN,

Plaintiff,

VERIFIED COMPLAINT

- against -

Index No.

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
JEREMIAH RAMOS (SHIELD NO. 31619 ASSIGNED
TO TD DT12) and POLICE OFFICERS JOHN DOE
Nos. 1-4 (Actual Names unknown, who were present
and involved in the Plaintiff's Arrest on January 23, 2023),

Defendants.

-----X

The Plaintiff, Joseph Lowman, by his attorney, Law Office of Matthew A. Kaufman,
PLLC, does state and say as and for his Complaint as follows:

NATURE OF PROCEEDINGS

1. This is a proceeding for compensatory and punitive damages owing to the Plaintiffs as a result of violations of Civil Rights under the Fourth, Thirteenth and Fourteenth Amendments to the Constitution of the United States and under Federal law, Title 42 of the United States Code, Section 1983 as well as claims arising under New York State law including for false arrest and malicious, prosecution as well as failing to remove a previously vacated bench warrant.
2. Defendants committed these unlawful violations of Plaintiff's constitutional and state rights under color of state law in bad faith and with malicious purpose in reckless, wanton, and willful disregard of the Plaintiffs' Constitutional rights to privacy and safety.

PARTIES

3. The Plaintiff, Joseph Lowman is a citizen of the United States of America, County of Bronx, City and State of New York.
4. The Plaintiff, Joseph Lowman is a person of African-American descent with dark skin.
5. Defendant City of New York [hereinafter referred to as “City”]:
 - a. At all times material hereto is a Municipal Corporation, duly formed and created pursuant to the laws and statutes of the State of New York.
 - b. At all times material hereto, Defendant City, by its agents, servants and employees, as well as by Defendant New York City Police Department [hereinafter “NYPD”] was responsible for the training and instruction of individuals employed by the NYPD.
6. The Plaintiff has complied with all conditions precedent to this action, to wit:
 - a. On April 18, 2023, the Plaintiff served a Notice of Claim upon the Defendant City within 90-days of the events upon which the claims herein are based pursuant to Section 50-e of the General Municipal Law;
 - b. On April 18, 2023, the Plaintiff served a Notice of Claim upon the Defendant NYPD within 90-days of the events upon which the claims herein are based pursuant to Section 50-e of the General Municipal Law;
 - c. On November 7, 2023, the Plaintiff appeared for a Municipal Hearing pursuant to Section 50-h of the General Municipal Law;
 - d. Thirty (30) days has passed and Defendants have failed or otherwise refused to adjust the claim within; and

- e. This action is commenced within one-year and ninety days of the date from which the events upon which the claims herein are based pursuant to Section 50-e of the General Municipal Law;
7. Defendant Police Officer Jeremiah Ramos (Shield No. 31691, Tax No. 953298), at all times material hereto, is a Police Officer in the employ of Defendants City's and/or NYPD [hereinafter "P.O. Ramos"]
8. At all times material hereto, Defendant P.O. Ramos was assigned to Transit District 12.
9. At all times material herein, Defendants Police Officers John Doe Nos. "1" to "4" (Actual Names Unknown, who, upon information and belief were members of the New York Police Department on January 19, 2023 and who were engaged in the arrest of the Plaintiff on January 19, 2023.
10. Defendant City is responsible, *inter alia*, for the management, administration, conduct and supervision of all personnel employed by Defendant NYPD to protect the safety of the public and the property of the public, such as the Plaintiff herein.
11. Each and every act of Defendants alleged herein was done by Defendants, and each of them as individuals, or through their employees, servants and/or agents, under color and authority of the laws, statutes, ordinances, customs and usages of the State of New York, the United States of America, and under their offices with the City of New York.
12. All of the acts of the individual Defendants alleged herein were done while acting within the scope of their employment with Defendants City and/or NYPD.

13. All of the acts of the individual Defendants alleged herein were done while acting in furtherance of their employment by Defendant City and/or NYPD.
14. Hereinafter, Defendants Police Officer “John Does Nos. ‘1’ through ‘4’” may be collectively referred to as the “Defendant Police Officers.”

BACKGROUND FACTUAL ALLEGATIONS

15. At all times material hereto, the Plaintiff, Joseph Lowman resided in the County of Bronx, City and State of New York.
16. On and around 12:30 p.m. on January 19, 2023, the Plaintiff, Joseph Lowman was at and near the intersection of Boston Road, Southern Boulevard and East 174th Street, Bronx, New York in the vicinity of 919 East 174th Street, Bronx, New York.
17. On and around 12:30 p.m. on January 19, 2023, the Plaintiff, Joseph Lowman was carrying a “book bag” [hereinafter, the “book bag”].
18. While at the corner, a vehicle operated by members of Defendants City and/or NYPD approached the vicinity of the vicinity of 919 East 174th Street, Bronx, New York [hereinafter referred to as the “RMP”].
19. The “RMP” backed up while on 174th Street and approached the Plaintiff.
20. The “RMP” stopped parallel to the Plaintiff, and two Defendant Police Officers exited the vehicle.
21. The Two Defendant Police Officers approached and stopped the Plaintiff, one of whom, upon information and belief, is Defendant P.O. Ramos.

22. One of the Defendant Police Officers was in an NYPD Police uniform;
 - a. The other Defendant Police Officer was wearing a Carhartt jacket
[hereafter the “Carhartt Officer”];
 - b. Upon information and belief, Defendant P.O. Ramos was the “Carhartt Officer.”
23. The Defendant Police Officers who approached the Plaintiff did not have an objective credible reason to approach the Plaintiff.
24. The Defendant Police Officers who approached the Plaintiff did not have a founded suspicion of criminal activity to justify their approaching the Plaintiff.
25. The Defendant Police Officers who approached the Plaintiff did not have reasonable nor probable cause to stop the Plaintiff.
26. The two Defendant Police Officers had “body worn cameras” [“BWC”] on at the time they approached the Plaintiff.
27. Upon information and belief, the two Defendant Police Officers who approached the Plaintiff:
 - a. Were wearing “BWC’s;”
 - b. The “BWC’s” recording light were dark on the as they approached the Plaintiff;
 - c. The “BWC” were not actively recording the events as they approached the Plaintiff.
28. Upon information and belief, the two Defendant Police Officers did not have their “BWC’s” activated or recording at the time they approached the Plaintiff.

29. The Defendant “Carhartt Officer” told the Plaintiff:
- “let me see your ID.”
30. The Plaintiff objected to Defendant’s demands for his identification stating he had not done anything.
31. The Defendant “Carhartt Officer” again told the Plaintiff:
- “let me see your ID.”
32. The Plaintiff again objected to Defendant’s demands for his identification stating he had not done anything.
33. Defendant “Carhartt Officer” then ordered the Plaintiff to move over to the “RMP.”
34. The Plaintiff walked over to the “RMP” and the other three Defendant Police Officers approached the location on foot.
35. The five Defendant Police Officers surrounded the Plaintiff while he was by the “RMP.”
36. The Plaintiff, being surrounded by the five Defendant Police Officers, was in fear of his personal safety.
37. While they were surrounding the Plaintiff at the “RMP,” all five Defendant Police Officers were wearing a “BWC.”
38. While the Defendant Police Officers were surrounding the Plaintiff at the “RMP,” the “BWC” devices were not activated and recording.
39. The five Defendant Police Officers did not have an objective credible reason to surround the Plaintiff at the “RMP.”

40. The five Defendant Police Officers did not have a founded suspicion of criminal activity to justify their surrounding the Plaintiff at the “RMP.”
41. The five Defendant Police Officers did not have reasonable nor probable cause to stop the Plaintiff at the “RMP.”
42. While at the “RMP,” the Defendant “Carhartt Officer” continued to demand the Plaintiff to hand over his ID to the Police.
43. The Plaintiff, having not done any conduct constituting a credible reason for the five Defendant Police Officers to surround him at the “RMP,” was in fear for his own personal safety, and produced his identification.
44. The Plaintiff, having not done any conduct constituting suspicious active of criminal activity for the five Defendant Police Officers to surround him at the “RMP,” was in fear for his own personal safety, and produced his identification.
45. After handing his identification to Defendant Police Officers, Defendant Police Officers spoke some numeric and letter codes and told the Plaintiff there was a bench warrant from 1995 [hereinafter, the “Bench Warrant”].
46. After telling the Plaintiff about the ““Bench Warrant,” Defendant Police Officers touched their “BWC’s” and a light started to blink.
47. After telling the Plaintiff about the ““Bench Warrant,” Defendant Police Officers activated their “BWC’s” to start recording.
48. The Plaintiff told the Defendant Police Officers there must be a mistake because he had already served time and parole after the ““Bench Warrant” was supposed issued.

49. Defendant Carhartt Police Officers took out a pair of handcuffs and put them tightly on the Plaintiff's wrists.
50. The Plaintiff asked Defendant Police Officers to loosen the handcuffs and they refused to loosen them.
51. Defendant Police Officers took the Plaintiff to the 42nd Police Precinct ["42nd Pct"].
52. At the "42nd Pct," Defendant Police Officers took the following property from the Plaintiff:
- a. The "book bag;"
 - b. Three (3) cell phones;
 - c. AirPods;
 - d. His wallet; and
 - e. \$264 in cash.
53. At the "42 Pct," Defendant Police Officers searched the "book bag."
54. Defendant Police Officers confiscated various containers of medication which were in the "book bag" [hereinafter referred to collectively as the "containers of medication"]
55. The Plaintiff was lawfully in possession of the "containers of medication" along with the contents in those containers.
56. The "containers of medication" all had labels with the Plaintiff's name on them.
57. The "containers of medication" all had labels with the name of the Plaintiff's doctor who had prescribed the mediation.
58. On January 19, 2023, Defendant Ramos verified a "Criminal Complaint" against the Plaintiff charging him with three (3) counts of Criminal possession of a

controlled substance in the seventh degree in violation of Section 220.03 of the New York Penal Law.

59. The Defendants thereafter fingerprinted the Plaintiff and placed him in a jail cell.
60. At the time Defendant Ramos verified the “Criminal Complaint,” he knew or should have known the Plaintiff was lawfully prescribed the medication identified in the “Criminal Complaint.”
61. At the time Defendant Ramos verified the “Criminal Complaint,” he knew or should have known the Plaintiff was lawfully in possession of the medication identified in the “Criminal Complaint.”
62. On January 20, 2023, the Plaintiff was arraigned in the Criminal Court of the City of New York, Bronx County, [hereinafter, the “Criminal Court”] Part AR-3 on the “Criminal Complaint,” and was assigned Docket Number CR-001493-23BX.
63. On January 20, 2023, the “Criminal Court,” Part AR-3 vacated the bench warrant against the Plaintiff (Hon. Deronn Bowen, J.).
64. The “Criminal Court,” Ar-3A, ordered the Plaintiff be released on his own recognizance (Hon. Deronn Bowen, J.).
65. The “Criminal Court,” AR-3A, adjourned the criminal court case bearing Docket Number CR-001493-23BX [hereinafter, the “Criminal Court case”] to March 3, 2023.
66. At all times material, the Plaintiff maintained his innocence of all the charges against him in the “Criminal Complaint.”

67. As a result of the false “Criminal Complaint,” the Plaintiff was required to return to the “Criminal Court, Part AP-3” on March 3, 2023.
68. On March 3, 2023, the “Criminal Court,” Part AP-3 adjourned the “Criminal Court case” to April 14, 2023.
69. As a result of the false “Criminal Complaint,” the Plaintiff was required to return to the “Criminal Court,” AP-3 on April 14, 2023.
70. On April 14, 2023, the “Criminal Court,” Part AP-3 adjourned the “Criminal Court case” to May 14, 2023.
71. As a result of the false “Criminal Complaint,” the Plaintiff was required to return to the “Criminal Court,” AP-3 on May 15, 2023.
72. As a result of the false “Criminal Complaint,” the Plaintiff was required to return to the “Criminal Court,” AP-3 on May 15, 2023.
73. On May 15, 2023, the “Criminal Court,” Part AP-3 dismissed the charges against the Plaintiff in the “Criminal Complaint” bearing Docket Number CR-001493-23BX.
74. The Plaintiff sustained injuries to his wrists as a result of Defendants having place the handcuffs too tight on his wrists, and thereafter Defendants’ refusing to adjust the handcuffs when notified by the Plaintiff the handcuffs were too tight.
75. Defendants failed and/or refused to return all of the Plaintiff’s property notwithstanding the dismissal of all the charges against him.

FIRST CAUSE OF ACTION

76. Defendants wrongfully approached and stopped the Plaintiff without reasonable nor probable cause that he was engaged in criminal activity.
77. Defendants wrongfully searched the Plaintiff's "book bag" and seized his medication without reasonable nor probable cause.
78. As a result of the foregoing conduct, the Plaintiff suffered physical and emotional injuries, endured and continues to endure pain and suffering.
79. In addition to the foregoing, the Defendants never returned the \$242.00 in cash which had been taken from him.
80. As a result of the foregoing conduct by Defendants herein, the Plaintiff has been damaged in an amount to be determined by this Court, within the jurisdiction of this Court and above the jurisdiction of all inferior Courts of this State as against the defendants as compensatory damages jointly and severally, TWO HUNDRED & FORTY TWO (\$242.00) DOLLARS special damages jointly and severally and an amount to be determined by the Court and the Court is to determine punitive damages as against the individual defendants.

SECOND CAUSE OF ACTION

81. In and about January, 2014, Defendant CITY enter into a settlement agreement in the case *Floyd v. City of New York*, 1:08-cv-01034 [SDNY] [hereinafter, the "*Floyd Settlement*" case].
82. Under the terms of the "*Floyd Settlement*," Defendant CITY, through Defendant NYPD, agreed, *inter alia*, to reform policies and practices that constituted

unconstitutional “stop and frisk” procedures by the NYPD based on racial profiling.

83. On January 19, 2023, the Defendant Police Officers did not have an objective credible reason to approach the Plaintiff.
84. On January 19, 2023, the Defendant Police Officers did not have a founded suspicion of criminal activity to justify their approaching the Plaintiff.
85. On January 19, 2023, the Defendant Police Officers did not have reasonable nor probable cause to approach and stop the Plaintiff.
86. The conduct of Defendant Police Officers, including Defendant Ramos in approaching and ultimately stopping the Plaintiff was in violation of the Plaintiff’s rights under the 4th and 14th Amendments to the United States Constitution, Section 6, Article I of the New York Constitution as well as the “*Floyd Settlement*.”
87. Upon information and belief, Defendant Police Officers, including Defendant Ramos, approached and stopped the Plaintiff without an objective credible reason nor reasonable nor probable cause.
88. Upon information and belief, Defendant Police Officers, including Defendant Ramos, approached and stopped the Plaintiff based on impermissible racial profiling.
89. As a result of Defendants’ conduct, the Plaintiff was wrongfully approached, stopped and arrested.

90. As a result of Defendants' conduct, the Plaintiff was falsely imprisoned and compelled to appear in Court to be arraigned.
91. As a result of the foregoing conduct by Defendants herein, the Plaintiff has been damaged in an amount to be determined by this Court, within the jurisdiction of this Court and above the jurisdiction of all inferior Courts of this State as against the defendants as compensatory damages jointly and severally, TWO HUNDRED & FORTY TWO (\$242.00) DOLLARS special damages jointly and severally and an amount to be determined by the Court and the Court is to determine punitive damages as against the individual defendants.

THIRD CAUSE OF ACTION

92. Defendant City, by and through its agents, failed to properly vacate a previously issued and vacated bench warrant from his personal history.
93. Defendants told the Plaintiff there was a bench warrant against him from 1995.
94. In actuality, any and all warrants against the Plaintiff were previously vacated as part of his prior criminal dispositions.
95. Defendant CITY had a duty and obligation to properly vacate any and all bench warrants which may have been issued against the Plaintiff.
96. As a result of Defendant CITY's negligence, a bench warrant remained active against the Plaintiff, resulting in his being detained and arrested.
97. As a result of the foregoing conduct by Defendants herein, the Plaintiff has been damaged in an amount to be determined by this Court, within the jurisdiction of this Court and above the jurisdiction of all inferior Courts of this State as against

the individual defendants compensatory damages jointly and severally, TWO HUNDRED & FORTY TWO (\$242.00) DOLLARS special damages jointly and severally.

FOURTH CAUSE OF ACTION

98. At all times herein mentioned, members of the five Defendant Police Officers who were at the scene observed the actions of their fellow officers in wrongfully approaching, stopping and arresting the Plaintiff.
99. Members of the group of the five Defendant Police Officers had an obligation to prevent and stop their fellow police officers unlawful and improper conduct.
100. Members of the group of Defendant Police Officers failed to take action to stop their fellow officers from wrongfully violating the Plaintiff's constitutional rights, and rights under the "*Floyd Settlement*."
101. As a result of the foregoing conduct by Defendants herein, the Plaintiff has been damaged in an amount to be determined by this Court, within the jurisdiction of this Court and above the jurisdiction of all inferior Courts of this State as against the defendants as compensatory damages jointly and severally, TWO HUNDRED & FORTY TWO (\$242.00) DOLLARS special damages jointly and severally and an amount to be determined by the Court as against the individual defendants for punitive damages.

FIFTH CAUSE OF ACTION

102. The false statements made by Defendant Ramos were material to the prosecution of the Plaintiff.

103. Defendant Ramos' false statements constituted evidence that was likely to influence a judge or jury as to the Plaintiff's guilt.
104. As a result of the criminal prosecution, the Plaintiff was required to appear in the Criminal Court on several occasions, and was deprived of is liberty and travel.
105. As a result of the aforementioned false statements in the "Criminal Complaint," the Plaintiff was required to return to the "Criminal Court" on multiple occasions, thereby limiting his rights and liberty.
106. As a result of the foregoing conduct by Defendants herein, the Plaintiff has been damaged in an amount to be determined by this Court, within the jurisdiction of this Court and above the jurisdiction of all inferior Courts of this State as against the defendants as compensatory damages jointly and severally, TWO HUNDRED & FORTY TWO (\$242.00) DOLLARS special damages jointly and severally and an amount to be determined by the Court and the Court is to determine punitive damages as against the individual defendants.

SIXTH CAUSE OF ACTION

107. The Plaintiff was wrongfully approached, stopped, detained and arrested as a result of conduct by Defendants CITY and/ NYPD.
108. Defendants CITY and NYPD did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants and employees and were negligent in the hiring, training and retention of the Defendants JEREMIAH RAMOS and JOHN DOES Nos. 1-4, who assaulted, battered and violated the civil rights of the Plaintiff.

109. Defendants CITY and NYPD had an affirmative obligation to train and supervise their police officers, agents, servants and employees including Defendants JEREMIAH RAMOS and JOHN DOES Nos. 1-4, regarding the compliance with “*Floyd Settlement*.”
110. Upon information and belief, Defendants CITY and NYPD had prior knowledge of the inappropriate, unlawful and improper conduct of Defendants Police Officer JEREMIAH RAMOS and POLICE OFFICERS JOHN DOE Nos. 1-4, and continued to employ them and allowed them to be in contract with the public at large.
111. Upon information and belief, Defendants CITY and NYPD had prior knowledge that the individual Defendants, Police Officer JEREMIAH RAMOS and POLICE OFFICERS JOHN DOE Nos. 1-4 routinely committed constitutional violations, including violation of the “*Floyd Settlement*,” and continued to employ them and allowed them to be in contract with the public at large.
112. As a result of the foregoing conduct by Defendants herein, the Plaintiff has been damaged in an amount to be determined by this Court, within the jurisdiction of this Court and above the jurisdiction of all inferior Courts of this State as against the individual defendants compensatory damages jointly and severally, TWO HUNDRED & FORTY TWO (\$242.00) DOLLARS special damages jointly and severally.

SEVENTH CAUSE OF ACTION

113. Upon information and belief, on January 4, 1996, the “Bench Warrant” was issued against the Plaintiff in a criminal case in Bronx County.
114. Upon information and belief, the “Bench Warrant” was issued by the Criminal Court of the City of New York, Bronx County, in a case bearing New York City Criminal Court, Bronx County docket number 95X052239 [the “1995 Case”].
115. Prior to January 23, 2023, the purported “Bench Warrant” against the Plaintiff had been vacated by the Court in the “1995 Case.”
116. Upon information and belief, the charges arising out of “1995 Case” were dismissed.
117. The dismissal of the “1995 Case” is further evidence by the fact the arrest sheet generated as a result of the Plaintiff’s arrest on January 23, 2023 does not indicate the existence of the “1995 Case.”
118. Upon information and belief, Defendant CITY had four different cases involving the Plaintiff since January 4, 1996 to correct the Plaintiff’s record and remove the “Bench Warrant.”
119. Defendant CITY negligently failed to properly maintain and correct the Plaintiff’s arrest record and purge the “Bench Warrant.”
120. Upon information and belief, Defendant Police Officers had access to the Plaintiff’s complete arrest history.
121. Upon information and belief, Defendant Police Officers:

- a. Knew or should have known that the “Bench Warrant” on the Plaintiff’s record was incorrect based on the fact:
 - i. It was twenty seven (27) years old;
 - ii. The Plaintiff had four (4) subsequent intervening arrests identified on his arrest record; and
 - iii. The “1995 Case” in which the “Bench Warrant” was issued was not listed on the Plaintiff’s arrest record.
 - b. Knew or should have known the “Bench Warrant” was incorrectly and erroneous listed as active, resulting in Defendant Police Officers falsely arrested and falsely detained
122. Upon information and belief, Defendants arrested the Plaintiff due to his race and color in violation of his rights under the 14th Amendment to the U.S. Constitution, 42 USC § 1983.
123. As a result of the foregoing conduct by the Defendant Police Officers herein, the Plaintiff has been damaged in an amount to be determined by this Court, within the jurisdiction of this Court and above the jurisdiction of all inferior Courts of this State as against the individual defendants compensatory damages jointly and severally, TWO HUNDRED & FORTY TWO (\$242.00) DOLLARS special damages jointly and severally and an amount to be determined by the Court and the Court is to determine punitive damages as against the individual defendants.

EIGHTH CAUSE OF ACTION

124. Defendant CITY failed to properly enter and vacate the “Bench Warrant” against the Plaintiff.
125. As a result of the foregoing, the Plaintiff was arrested, detained, imprisoned and forced to attend and appear in Court.
126. As a result of the foregoing conduct and negligence by Defendant CITY and the Defendant Police Officers, a bogus “Bench Warrant” remained active on the Plaintiff’s arrest record, and the Plaintiff has been damaged in an amount to be determined by this Court, within the jurisdiction of this Court and above the jurisdiction of all inferior Courts of this State as against the individual defendants compensatory damages jointly and severally, TWO HUNDRED & FORTY TWO (\$242.00) DOLLARS special damages jointly and severally and an amount to be determined by the Court.

WHEREFORE, Plaintiff respectfully prays this Court for a judgment for in an amount to be determined by this Court:

- a. On the First and Second Causes of Action, in an amount to be determined by this Court, within the jurisdiction of this Court and above the jurisdiction of all inferior Courts of this State as against Defendants CITY, NYPD, Defendant Police Officer Jeremiah Ramos, Defendant Police Officers John Doe Nos. 1-4 as compensatory damages jointly and severally; TWO HUNDRED & FORTY TWO (\$242.00) DOLLARS special damages jointly and severally against all defendants, jointly and severally; and an amount to be determined by the Court as against the individual defendants for punitive as against Defendant Police Officer Jeremiah Ramos, Defendant Police Officers John Doe Nos. 1-4;
- b. On the Third Cause of Action, in an amount to be determined by this Court, within the jurisdiction of this Court and above the jurisdiction of all

inferior Courts of this State as against Defendants CITY, NYPD, Defendant Police Officer Jeremiah Ramos, Defendant Police Officers John Doe Nos. 1-4 as compensatory damages jointly and severally; TWO HUNDRED & FORTY TWO (\$242.00) DOLLARS special damages jointly and severally against all defendants, jointly and severally; and an amount to be determined by the Court as against the individual defendants for punitive as against Defendant Police Officer Jeremiah Ramos, Defendant Police Officers John Doe Nos. 1-4;

- c. On the Fourth Cause of Action, On the First and Second Causes of Action, in an amount to be determined by this Court, within the jurisdiction of this Court and above the jurisdiction of all inferior Courts of this State as against Defendants CITY, NYPD, Defendant Police Officer Jeremiah Ramos, Defendant Police Officers John Doe Nos. 1-4 as compensatory damages jointly and severally; TWO HUNDRED & FORTY TWO (\$242.00) DOLLARS special damages jointly and severally against all defendants, jointly and severally; and an amount to be determined by the Court as against the individual defendants for punitive as against Defendant Police Officer Jeremiah Ramos, Defendant Police Officers John Doe Nos. 1-4;
- d. On the Fifth Cause of Action, in an amount to be determined by this Court, within the jurisdiction of this Court and above the jurisdiction of all inferior Courts of this State as against Defendants Police Officer Jeremiah Ramos, Defendant Police Officers John Doe Nos. 1-4 as compensatory damages jointly and severally; TWO HUNDRED & FORTY TWO (\$242.00) DOLLARS special damages jointly and severally against all defendants, jointly and severally; and an amount to be determined by the Court as against the individual defendants for punitive as against Defendant Police Officer Jeremiah Ramos, Defendant Police Officers John Doe Nos. 1-4;
- e. On the Sixth Cause of Action, in an amount to be determined by this Court, within the jurisdiction of this Court and above the jurisdiction of all inferior Courts of this State as against Defendants CITY, NYPD, Defendant Police Officer Jeremiah Ramos, Defendant Police Officers John Doe Nos. 1-4 as compensatory damages jointly and severally; TWO HUNDRED & FORTY TWO (\$242.00) DOLLARS special damages jointly and severally against all defendants, jointly and severally; and an amount to be determined by the Court as against the individual defendants for punitive as against Defendant Police Officer Jeremiah Ramos, Defendant Police Officers John Doe Nos. 1-4;

- f. On the Seventh Cause of Action, in an amount to be determined by this Court, within the jurisdiction of this Court and above the jurisdiction of all inferior Courts of this State as against Defendants CITY, NYPD, Defendant Police Officer Jeremiah Ramos, Defendant Police Officers John Doe Nos. 1-4 as compensatory damages jointly and severally; TWO HUNDRED & FORTY TWO (\$242.00) DOLLARS special damages jointly and severally against all defendants, jointly and severally; and an amount to be determined by the Court as against the individual defendants for punitive as against Defendant Police Officer Jeremiah Ramos, Defendant Police Officers John Doe Nos. 1-4;
- g. On the Eighth Cause of Action, in an amount to be determined by this Court, within the jurisdiction of this Court and above the jurisdiction of all inferior Courts of this State as against Defendants CITY, NYPD, Defendant Police Officer Jeremiah Ramos, Defendant Police Officers John Doe Nos. 1-4 as compensatory damages jointly and severally; TWO HUNDRED & FORTY TWO (\$242.00) DOLLARS special damages jointly and severally against all defendants, jointly and severally; and an amount to be determined by the Court as against the individual defendants for punitive as against Defendant Police Officer Jeremiah Ramos, Defendant Police Officers John Doe Nos. 1-4;
- h. Reasonable attorneys' fees pursuant to 42 U.S.C. § 1988 in an amount to be determined by this Court;

as well as costs, fees disbursements.

Dated: New York, N.Y.
March 25, 2024

Yours, etc.,
LAW OFFICE OF
MATTHEW A. KAUFMAN, PLLC
s/ Matthew A. Kaufman

By: Matthew A. Kaufman
Attorney for Plaintiff
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MAK File No. 15,647.301
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ALTERNATE COVID-19 ADDRESS
P.O. Box 339
Woodridge, N.Y. 12789-0337

ATTORNEY VERIFICATION

STATE OF NEW YORK, COUNTY OF NEW YORK) ss.:

MATTHEW A. KAUFMAN, ESQ., an attorney duly admitted to practice in the Courts of the State of New York does state and say under penalty of perjury, pursuant to CPLR 2106, that:

1. I am the member of Law Office of Matthew A. Kaufman, PLLC, attorney of record for the Plaintiff for the within action; I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by my client because she resides in a different county from where I maintain my office.
2. The grounds of my belief as to all matters not stated upon my own knowledge are based upon my own investigation and information contained in the firm's file.

Dated: March 25, 2024

s/ Matthew A. Kaufman
Matthew A. Kaufman

Index No.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

JOSEPH LOWMAN,

Plaintiff,

-against-

THE CITY OF NEW YORK, *et al.*,

Defendant.

**SUMMONS WITH
VERIFIED COMPLAINT**

**LAW OFFICE OF
MATTHEW A. KAUFMAN, PLLC**

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ALTERNATE COVID-19 ADDRESS

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